
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: May 7, 2024
SUBJECT: Consideration of Bid #S-20-24 for an Agreement between the City of Cheyenne and Simon Contractors, for the Public Works Improvements Project

Bid #S-20-24 was solicited for the Public Works Improvements project (Project Vicinity Map included).

Five (5) bidders responded to this bid, and the bid tabulation is attached. The Bids were received from:

1. Simon Contractors
2. JTL Group Inc. d/b/a Knife River
3. Resource Construction LLC
4. Reiman Corp.
5. S&S Builders LLC

The bids were reviewed by Adele Bartel (Public Works), Craig LaVoy (Public Works), and Vicki Nemecek (Public Works) and their recommendation is to accept the lowest responsive bid from Simon Contractors.

The total Bid Award is \$2,377,017.25

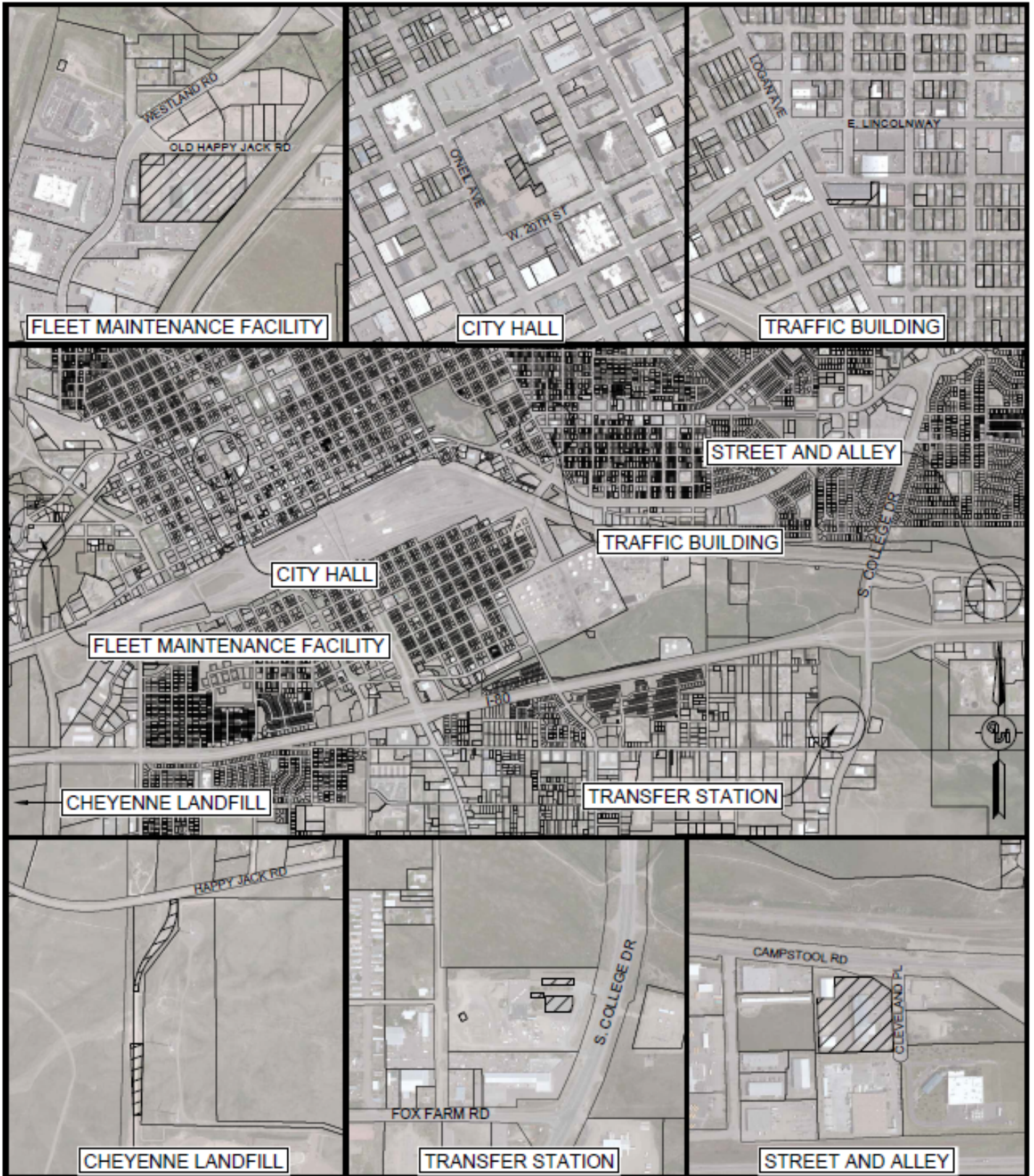
Project Completion is scheduled for October 31, 2025.

Funding:

101-14-1415-40-43501 (Fleet Maintenance Fund / Improvements)	\$647,706.00
020-26-2615-40-21601 (1% Sales Tax 19-22 / Maintenance / Muni. Building)	\$124,140.50
020-26-2617-42-21601 (1% Sales Tax 19-22 / Maintenance / Traffic)	\$212,940.50
023-14-1424-43-43501 (Solid Waste Fund / Improvements / Landfill)	\$380,520.75
023-14-1417-43-43501 (Solid Waste Fund / Improvements / Sanitation)	\$108,870.75
020-26-2616-42-21601 (1% Sales Tax 19-22 / Maintenance / Street & Alley)	\$902,838.75

VICINITY MAP

NOT TO SCALE





City of Cheyenne

Purchasing

TJ Barttelbort, Purchasing Manager
2101 O'Neil Ave., Room 309, Cheyenne, WY 82001

EVALUATION TABULATION

IFB No. S-20-24

Public Works Improvements

RESPONSE DEADLINE: May 3, 2024 at 2:00 pm

Report Generated: Friday, May 3, 2024

SELECTED VENDOR TOTALS

Vendor	Total
Simon Contractors	\$2,377,017.25
S&S Builders LLC	\$2,917,805.75
JTL Group Inc. dba Knife River	\$3,282,069.50
Reiman Corp.	\$3,396,750.15
Resource Construction LLC	\$4,099,190.61

SCHEDULE A - FLEET MAINTENANCE

Vendor	Total
Simon Contractors	\$647,706.00
S&S Builders LLC	\$725,189.00
Reiman Corp.	\$884,815.75
JTL Group Inc. dba Knife River	\$892,535.00
Resource Construction LLC	\$982,081.90

EVALUATION TABULATION
IFB No. S-20-24
Public Works Improvements

SCHEDULE B - CITY HALL

Vendor	Total
Resource Construction LLC	\$121,258.92
Simon Contractors	\$124,140.50
S&S Builders LLC	\$138,449.00
Reiman Corp.	\$179,838.45
JTL Group Inc. dba Knife River	\$210,175.00

SCHEDULE C - TRAFFIC BUILDING

Vendor	Total
Simon Contractors	\$212,940.50
S&S Builders LLC	\$265,881.00
JTL Group Inc. dba Knife River	\$287,145.00
Reiman Corp.	\$333,953.75
Resource Construction LLC	\$462,517.00

SCHEDULE D - LANDFILL

Vendor	Total
Simon Contractors	\$380,520.75

EVALUATION TABULATION
IFB No. S-20-24
Public Works Improvements

Vendor	Total
JTL Group Inc. dba Knife River	\$505,260.00
S&S Builders LLC	\$519,361.70
Reiman Corp.	\$529,718.40
Resource Construction LLC	\$592,868.40

SCHEDULE E - TRANSFER STATION

Vendor	Total
Simon Contractors	\$108,870.75
S&S Builders LLC	\$146,813.25
JTL Group Inc. dba Knife River	\$178,005.00
Resource Construction LLC	\$192,595.50
Reiman Corp.	\$208,776.50

SCHEDULE F - STREET AND ALLEY

Vendor	Total
Simon Contractors	\$902,838.75
S&S Builders LLC	\$1,122,111.80
JTL Group Inc. dba Knife River	\$1,208,949.50

EVALUATION TABULATION
 IFB No. S-20-24
 Public Works Improvements

Vendor	Total
Reiman Corp.	\$1,259,647.30
Resource Construction LLC	\$1,747,868.89

VENDOR QUESTIONNAIRE PASS/FAIL

Question Title	JTL Group Inc. dba Knife River	Reiman Corp.	Resource Construction LLC	S&S Builders LLC	Simon Contractors
REQUIRED FORMS					
BID BOND FORM	Pass	Pass	Fail	Pass	Pass
CITY OF CHEYENNE NON-COLLUSION AFFIDAVIT OF PRIME BIDDERS FORM	Pass	Pass	Fail	Pass	Pass
CITY OF CHEYENNE SUBCONTRACTORS AND MATERIALS SUPPLIERS LIST FORM	Pass	Pass	Fail	Pass	Pass
WYOMING RESIDENCY CERTIFICATION					
RESIDENT CONTRACTOR	Pass	Pass	Pass	Pass	Pass
RESIDENT CONTRACTOR - SUBCONTRACTING	Pass	Pass	Pass	Pass	Pass
RESIDENT CONTRACTOR - CERTIFICATE	Pass	Pass	Pass	Pass	Pass
FIRM / BIDDER INFORMATION					
FIRM / BIDDER NAME	Pass	Pass	Pass	Pass	Pass

EVALUATION TABULATION
IFB No. S-20-24
Public Works Improvements

Question Title	JTL Group Inc. dba Knife River	Reiman Corp.	Resource Construction LLC	S&S Builders LLC	Simon Contractors
FIRM'S / BIDDER'S LEGAL STATURE	Pass	Pass	Pass	Pass	Pass
STATE OF INCORPORATION	Pass	Pass	Pass	Pass	Pass
BIDDERS PHYSICAL ADDRESS	Pass	Pass	Pass	Pass	Pass
FIRM / BIDDER PHONE NUMBER	Pass	Pass	Pass	Pass	Pass
FIRM / BIDDER E-MAIL ADDRESS	Pass	Pass	Pass	Pass	Pass
FULL COMPLIANCE WITH BIDDING DOCUMENTS	Pass	Pass	Pass	Pass	Pass
BIDDERS SIGNATURE (NAME & TITLE)	Pass	Pass	Pass	Pass	Pass

CITY OF CHEYENNE, WYOMING
AGREEMENT

Bid No. S-20-24

Contract No. _____

THIS AGREEMENT, entered into this ____ day of _____, 2024, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and **Simon Contractors**, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**Public Works Improvements**" project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: **Addendum One (1), dated April 24, 2024, Addendum Two (2), dated April 26, 2024, and Addendum Three (3), dated April 29, 2024.**

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by **October 31, 2025**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, **the sum of Two Million, Three Hundred Seventy-Seven Thousand, Seventeen Dollars, and Twenty-Five Cents (\$2,377,017.25)**. In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for the percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or

the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

b. The City will withhold five percent (5%) of the dollar value of the work completed for a minimum of forty-one (41) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. §16-6-116. Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City and all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|-----------------------------|--------------------------------------|
| 1. This Agreement; | 6. General Conditions and Insurance; |
| 2. Addenda; | 7. Supplemental Conditions; |
| 3. Invitation for Bids; | 8. Part IV Forms & Notices; |
| 4. Instructions to Bidders; | 9. Specifications and Special |
| 5. Signed Bid Proposal; | Provisions; and |
| | 10. Drawings. |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kristina F. Jones, City Clerk

Patrick Collins, Mayor

Contractor

Simon Contractors

By

Title: _____
6215 Clear Creek Pkwy
Cheyenne, WY 82007